CHAPTER 8

Utilitarianism: Bentham and Mill

[The object of] the principle of utility *... is to rear the fabric of felicity by the hands of reason and of law. Systems which attempt to question it, deal in sounds instead of sense, in caprice instead of reason, in darkness instead of light.*

But enough of metaphor and declamation: it is not by such means that moral science is to be improved.

Jeremy Bentham, Introduction to the Principles of Morals and Legislation

In the first few chapters of this book, we explored some ways that morality, and with it moral philosophy, has been under attack. Cultural relativism, skepticism, subjectivism, and determinism all threaten to disrupt our ordinary moral views, and therefore the merits of these challenges needed to be assessed. We then examined several approaches to morality that, in very different ways, attempt to produce positive moral theories. Theories of divine command, natural law, ethical egoism, and the social contract all propose accounts of what we ought to do, morally speaking, even though several of these views are related to positions that in many ways are critical of ordinary morality.

Beginning with Chapter 8 and continuing through Chapter 13, we will look in greater detail at the three theories currently dominating debate in moral philosophy: utilitarianism, Kantian deontology, and virtue ethics. In Chapter 14 we will focus on feminist ethics and also discuss the ethics of race. These newer approaches, which are growing in importance and influence, challenge mainstream ethical thinking and propose ways of recasting moral philosophy to overcome those critiques. Finally, in Chapter 15, we will explore how the theories explored here can help you develop your own moral outlook. But we start Chapter 8 by looking closely at the theory of utilitarianism, introduced by Jeremy Bentham and developed further by John Stuart Mill.

THE CONTEXT OF BENTHAM'S MORAL PHILOSOPHY

Jeremy Bentham (1748–1832) is normally regarded as the founder of utilitarianism, the theory that takes its inspiration from the creed known as the greatest happiness principle.

> By the principle of utility is meant that principle which approves or disapproves of every action whatsoever, according to the tendency which it appears

> to have to augment or diminish the happiness of the party whose interest is in question: or, what is the same thing in other words, to promote or to oppose that happiness. (Bentham, 1789/1970, chap. 1, sec. 2, p. 12)

Bentham's idea is that when we make a moral decision, the right action is the one that does most to maximize what he calls utility. **Utility** is understood first in terms of happiness and then as the balance of pleasure over pain. In each case these terms replace a more abstract idea with a more concrete one, thus ending up with concepts that are easy to understand and assess. Utility is a philosopher's abstraction, whereas pleasure and pain are real and can be felt. Happiness, as generally understood, is not quite the same thing as pleasure. Happiness or unhappiness seems to take place for an extended period, whereas pleasures and pains are often much shorter experiences. But generally happiness and pleasure are closely related, and Bentham finds that formulating the theory in terms of pleasure and pain makes it more precise and easier to apply.

And indeed applying the theory seems relatively straightforward. Where only one person is involved, utilitarianism approves of whatever maximizes the balance of pleasure over pain for that individual. When more than one person is involved, the calculation becomes a little more complex. We will have to compare and add together the different pleasures and pains of different people. Obviously this raises questions about how to measure and compare pains and pleasures. We will return to this issue, but for now we have the basic idea. Utilitarians have to consider the effects of an action on the pleasure and pain of everyone who is affected by it and then pursue the option that is expected to yield the greatest sum total of pleasure over pain. Doing so, they believe, will generate the greatest happiness for the greatest number.

This simple theory needs considerable unpacking; but before we look at the details, it is worth understanding the context in which Bentham produced his theory. Only then will we appreciate the importance and distinctive character of his approach. As with any thinker, it can be helpful to consider the intellectual climate in which he or she wrote, and in particular to consider who or what they opposed or felt compelled to dispute. Bentham gives us a powerful clue in an argument for the theory of utilitarianism early in his book *An Introduction to the Principles of Morals and Legislation*. Denying that it is possible to find a direct proof for utilitarianism, "for that which is used to prove every thing else cannot itself be proved" (Bentham, 1789/1970, p. 13), Bentham offers a type of indirect proof. He lays out what he considers to be all available moral positions, including utilitarianism, and presents arguments to defeat the alternative theories. This is an interesting

argumentative strategy; if it succeeds, it leaves utilitarianism as the only theory left standing and therefore the victor. We can call this an **argument by elimination** because it attempts to eliminate all competitors.

In fact, though, Bentham considers only three moral positions, apparently regarding them as the only three possibilities. One, of course, is his own utilitarian view. A second is what he calls the principle of sympathy and antipathy, which approves or disapproves of actions purely on the basis of a person's attitudes. And a third is the principle of asceticism (using the term *asceticism* in a somewhat unconventional sense), which is the mirror image of utilitarianism. In considering this rather strange possibility, he supposes that we should maximize pain rather than pleasure. Bentham's arguments against these views will help us understand his position; on the surface it is curious that he chose to discuss these unusual positions rather than the writings of the great moral philosophers, such as Plato (429?–347 BCE) and Aristotle (384–322 BCE), which he virtually ignores. But Bentham's choice is highly revealing.

To see why, we need to look at the foundation for Bentham's utilitarianism. We can read Bentham as being driven by three fundamental convictions. First, he believed that morality requires everyone to be treated as an equal: "Everyone is to count for one, no-one for more than one." This view, which is implicit throughout his work, contrasts with elitist or discriminatory views that presupposed men were worth more than women, people of one race or religion more than another, or aristocrats worth more than commoners. In Bentham's time, forms of discrimination ran through much of ordinary life. For example, it was not until Bentham's old age that it became possible to obtain a university education in England for those who were not both male and prepared to assent to the articles of the Church of England. His fundamental premise of equality would have judged these restrictions as quite unjustified.

Second, Bentham believed that ultimately the only things in the world that matter are the pleasures and pains of sentient creatures—including humans, of course, but also animals. Although some readers will think it obvious that only pleasure and pain matter, in fact many common moral views have very different implications. For example, traditional religious moralities give value to suffering (paying penance) or rule some pleasures immoral (eating the wrong food, dancing in the wrong way, playing games on the Sabbath.)

Third, Bentham was convinced that morality, and good governance, has to be based on firm principles. The alternative to principled reasoning is, he thought, to let individual opinion dominate. Then we leave ourselves open to, at best, uncertainty and inconsistency; and at worst, prejudice and

corruption, especially at the level of government. In his later work Bentham devised the concept of "sinister interests," by which he meant that those in power will often be tempted to advance their own interests rather than follow the common good. He argued that firm, reliable principles are needed to guard against this type of corrupt use of power.

Bentham's utilitarianism is an interpretation of the first conviction mentioned, that everyone is to count for one and no one for more than one. And in summary, Bentham's arguments against the principle of asceticism (the theory that we should maximize pain) rely on the second of these convictions, asserting the importance of pleasure and the avoidance of pain. And his arguments against the principle of sympathy and antipathy—what he also calls the principle of "caprice"—rely on the third conviction, asserting the importance of firm principles.

Elimination of Asceticism

Let's look at these alternative theories and the arguments against them in a little more detail. For Bentham the principle of asceticism, which demands maximizing pain over pleasure, is easily dismissed. Bentham points out, fairly enough, that probably no one has ever held such a view—which may make you wonder why he thinks it even worth considering. Those who seem to advocate it, so he suggests, are really defending another view: that mortifying your flesh on earth improves your chances of going to heaven and enjoying a blissful afterlife. The pain is worth the pleasure. But as Bentham points out, this is merely a form of the utilitarian view, albeit one held by those who believe in a religious doctrine about life after death and what they need to do on earth to enter heaven rather than hell. Bentham's real targets are the religious moralists, those who wish to suppress earthly pleasures based on what Bentham regards as a false and pernicious religious doctrine. In arguing against the principle of asceticism, he was attacking some version of severe religious puritanism.

In fact, as noted earlier, we should see utilitarianism as opposed not just to the principle of asceticism, which is an austere and implausible moral theory, but to a whole range of moral theories based on or influenced by religious views that see virtue in the practice of less-demanding kinds of self-denial. Customary and religious moralities contain rules that, in Bentham's view, lead to the denial of pleasure or the imposition of harm for no good reason. For example, we saw in an earlier chapter Bentham's response to the view that the only legitimate form of sex is that between husband and wife for the purposes of reproduction. This belief had led, in England during the 18th and 19th centuries, to the prohibition of contraception and the official

suppression of sex in other forms. In practice this view caused people enormous anxiety and guilt, not to mention unwanted pregnancies, perilous illegal abortions, and the abandonment of newborn children. Indeed Bentham's follower John Stuart Mill (1806–73), who we will discuss shortly, spent a night in jail as a teenager for distributing a pamphlet explaining the principles of contraception. Mill took up that campaign after his shocking experience of finding a dead newborn baby in a London park (Reeves, 2008). Ignorance of contraception had led to great misery, especially for scared young women for whom pregnancy could mean ruin. And, Bentham and Mill would ask, what was the purpose of suppressing contraception? It was certainly not for the sake of human happiness. Bentham considered the principle of asceticism, and its milder forms in which customary or religious moral rules lead to great pain, not pleasure, to be wholly irrational.

And indeed Bentham points out that the principle of asceticism is really a personal code of conduct rather than a theory of morality:

> We read of saints who, for the good of their souls, and the mortification of their bodies, have voluntarily yielded themselves a prey to vermin: but though many persons of this class have wielded the reins of empire, we read of none who have set themselves to work, and made laws on purpose, with a view of stocking the body politic with the breed of highwaymen, housebreakers or incendiaries. (1789/1970, p. 20)

Elimination of the Principle of Sympathy and Antipathy

What, then, of the principle of sympathy and antipathy? What is this principle? Consider how you might ordinarily go about making a moral decision. Your friend has asked you to help him move some furniture over the weekend, but you are invited to a meal with a distant cousin who is on a rare visit to town, and it isn't possible to do both. Which should you do? Obviously a number of questions will go through your head. Does your friend have anyone else who could help? How critical is it for your friend to move the furniture this weekend? When could you next see your cousin? How much does it matter if you don't see her? And so on. In the end, if you are lucky, one of the options may seem clearly the correct thing to do. Alternatively the decision may continue to be difficult, and you just find yourself almost randomly choosing one over the other.

We are all familiar with situations like this one. When they arise, we consider the options carefully and try to work out what is most important. Although we might not think of our choice as explicitly a moral decision, it does involve a moral dilemma: the duties of friendship versus the duties of family. It may seem odd to describe friendship and family as involving

"duties" because friendship and family involve much more than that, at least when they go well, but moral duty is at least part of the relationship. And so we try to discern the "plus" factors and the "minus" factors and weigh them up. But the problem is that we seem to be weighing without a scale. I can say that morally the right thing to do is to help my friend. But equally I could say that morally the right thing is to meet my cousin. If someone questions me, I can give my reasoning. But within certain limits I can twist what I say to fit my decision, whatever it is, and no one can confidently say that I have made a mistake. There is no formula that anyone else, or even me myself, can follow to check my reasoning.

This process, according to Bentham, is how we reason using the "principle of sympathy and antipathy" and why it is so problematic: It is liable to misuse, even corruption, because it has no principle or formula for decision making, no mechanism of accountability. It is hostage to the biases of the powerful. For example, Bentham worried that such reasoning would lead us to over-punish those who had broken the law. And this is why a formula, like the principle of utility, is so attractive. It provides a rigorous framework, unlike the methods used by some of Bentham's philosophical predecessors, who were known as **moral sense** thinkers. Bentham thought those philosophers wrapped up ordinary moral intuitions into a pretend moral theory, thereby giving us no insight into morality or assistance with moral reasoning. In contrast, utilitarianism offers a firm guide and principle.

CLARIFYING UTILITARIANISM

Bentham's formulation of utilitarianism seems clear and succinct, but it is worth spending the time to come to a fuller understanding. Later theorists have helpfully split the theory into two parts, what they call a **theory of the good** and a **theory of the right**. A theory of the good tells us what sort of things in the world are good (and bad); a theory of the right focuses on our actions, telling us which actions are right and wrong. Utilitarianism is the theory that the *right* thing to do is always to bring about as much *good* as possible. This may seem to be obviously true, to the point of triviality. After all, what else should we do? Bring about less good than we could? But we will see, especially in the following chapters, that this apparent obviousness is deceptive: Oddly, sometimes the right thing to do might be to bring about less good than we could have done, at least when we understand the term *good* as Bentham defines it. Therefore let's look first at Bentham's theory of the good in order to understand what is at stake in this debate.

Bentham's Theory of the Good

To start, we need to investigate what sorts of things Bentham considers good and bad. Quite clearly he regards happiness, which as we saw he understands in terms of pleasure, as good; and he views unhappiness, or pain, as bad. Few would disagree with Bentham that happiness or pleasure is generally good or that unhappiness or pain is bad—although as we have already seen, Bentham did think he had opponents even on these points.

But there are at least two points of potential controversy. First, Bentham has a wide concept of pleasure, and he divides it into many subcategories. His philosophical habit was to be as systematic as possible, racking his brains to find every variety of the phenomenon he was discussing. He distinguished many varieties of pleasure: from the relatively innocent, including the pleasures of sense (such as enjoying the fragrance of a rose) to the much more questionable, such as the pleasures of being malevolent. Would we agree that the world is a better place if people take pleasure in the misfortune of others, for example, cheering up when hearing that someone they dislike has been injured in a car crash?

Bentham also makes the important claim that pleasure or happiness is the *only thing* that is good, and pain or displeasure the *only thing* that is bad. Can this be right? John Stuart Mill made the same claim. We will postpone discussion of this important topic until Chapter 9, where we will also look at criticisms of the theory.

Measuring Happiness

In the meantime, let's consider one serious question about utilitarianism. Remember that the theory requires us to maximize the sum total of pleasure over pain. But can we even make sense of the idea of maximizing pleasure? If we are to maximize the totality of pleasures over pain, first we have to be able to measure them and put them on the same scale. How can we even compare pains and pleasures against each other?

Bentham was keenly aware of this problem. In his book *Introduction to the Principles of Morals and Legislation* (1789/1970), he wrote a short chapter attempting to explain how to measure pleasure and pain; in a footnote added later, he includes a short verse as a type of aide-mémoire for the theory. The verse begins:

> *Intense, long, certain, speedy, fruitful, pure—*
> Such marks in *pleasures* and in *pains* endure.

The first line picks out the six features by which, according to Bentham, we can measure individual pleasures and pain: (1) intensity; (2) duration;

(3) certainty or uncertainty; (4) propinquity or remoteness, meaning distance in time; (5) fecundity, explained as its likelihood of being followed by other pleasures; and (6) purity, or its chances of not being followed by the opposite (i.e., that a pleasure will not be followed by a pain).

Some of these ideas seem straightforward, such as that we should take duration into account. Others, such as remoteness, are controversial. Should we discount future pleasures and pains in the sense of giving them less weight in our calculations? True, future anticipated pleasures or pains are less certain to happen. But this thought should be accommodated already under the category of certainty. This somewhat technical sounding issue is a matter of enormous practical importance in the contemporary world. If, for example, we do discount future pleasures and pains, then the issue of climate change, which will affect people in the distant future, will be less morally important. Arguably, including remoteness violates the idea that everyone—including future people—is to count as one.

But the main question is whether Bentham has given us enough information about measurement to be able to apply the theory. Now, some types of comparison of pleasure and pain are easy. A pain that lasts two days must surely be worse than one of the same intensity that lasts two minutes. Accordingly, we can rank one as worse than the other. This is known as an ordinal scale: putting different items into an *order* of better or worse, in the same way we can say that today was warmer than yesterday. But this is not enough to allow us to make the necessary utilitarian calculation. First, it seems, we need to make what are known as cardinal measurements: being able to put *numbers* on different pleasures and pains, just as a thermometer allows us to do for temperature or scales for weight. For maximizing to make sense, we need numbers. And not only that, but we need to be able to compare one person's pleasure or pain with another; this is known as the problem of **interpersonal comparisons of utility**. The difficult question is how to measure intensity. Bentham is clear that intensity matters: after all, it is the first thing on his list. But he passes over the issue of intensity very quickly and gives us no real help in working out how to measure it.

And so we can see that the information we need in order to be a utilitarian is demanding, but also worrying, lacking. We need a "pleasure measure"—but even with recent advances in neuroscience, we don't have a device like a thermometer that can measure our happiness.

But perhaps we should not exaggerate the problem. Maybe it is possible to make intuitive judgments that are close enough. After all, a thriving body of research is now asking what makes us happy. It also asks whether we are

happier now than people used to be in less technologically advanced times (apparently not) and whether the people of one nation are happier than another. In 2014, for example, a study called "The World Happiness Report" named Denmark as the happiest country on earth, while the OECD Better Life 2012 Index (which looks only at wealthier countries that are members of the Organisation for Economic Co-operation and Development) put Switzerland on top for life satisfaction, Norway in second place, and Denmark in third.

And what innovative scientific methodology was used to derive this ranking? Brain scans? Advanced computer modeling? In fact two simple methods were used. In one, people from each country were asked to rank their satisfaction with life on a scale from 0 to 10. Switzerland topped the scale with an average of 7.7. Greece, in severe economic recession, was at the other end of the scale, and the United States fell somewhere in the middle. The other method measured happiness through positive experiences and feelings such as enjoyment, feeling well-rested, smiling or laughing, together with the absence of negative experiences and feelings such as pain, worry, or sadness. Iceland, Japan, and New Zealand do well on this measure, with troubled Greece again near the bottom.

In other words, it seems we can do some sort of measurement of happiness just by talking to people and asking questions about how they feel. Perhaps measuring happiness is not so hard after all. Remember that Bentham replaced the notion of happiness and unhappiness with pleasure and pain at least partly on the grounds that these are more precise, observable, and scientific notions. The first of these measures, asking about life satisfaction, seems to be concerned with happiness. The second one, in asking about positive and negative experiences, seems closer to measuring pleasure and pain.

Now, many questions could be raised. If I say that my satisfaction is 7 out of 10, and you also say the same thing, does that really mean we are equally happy? Perhaps I am fairly miserable but have low expectations of what is possible, while you are ecstatically happy but feel that you have not yet reached your full potential. We must concede that, at best, these types of methods are imprecise or rough and ready. Yet there does seem to be something to them.

We might be able to measure pleasure and pain precisely enough to apply utilitarian theory and then choose to act in a way that maximizes the balance of pleasure over pain. Bentham certainly assumed so. We can be at least moderately confident that the theory can be applied, but it does seem to require a degree of intuitive judgment that Bentham would have regarded as less than ideal.

UTILITARIANISM AND EQUALITY FOR WOMEN

Jeremy Bentham's utilitarianism became very well known in the early part of the 19th century, attracting both devoted followers and severe critics. In 1861, more than 70 years after Bentham first published *An Introduction to the Principles of Morals and Legislation*, John Stuart Mill published *Utilitarianism* (1861/2001) to provide further support for the theory and ward off what had become, in Mill's view, serious misunderstandings that had made many people regard the theory as narrow and uninspiring.

One such mistake, heard even today, concerns the word *utilitarian*, which seems to have the connotation of dull efficiency. For example, long after Mill's death, during the Second World War, furniture produced in the United Kingdom was stamped with something called a utility mark. This mark showed that the furniture met a standard of making the best use of scarce resources with no unnecessary frills, details, or ornamentation. A utilitarian, based on this understanding, is one who is well organized and sets out to achieve a goal but lacks style or flair. Calling someone utilitarian is often intended as a slight or insult, suggesting perhaps that they are focused only on short-term financial, bureaucratic, or narrowly practical issues and are ignoring what really matters. But for Mill a greater misinterpretation of the theory could hardly exist. The theory of utilitarianism of course seeks to achieve efficiency, but aims for efficiency in creating happiness or joy—the greatest happiness of the greatest number. In this sense there is nothing "utilitarian" about utilitarianism, as Mill understands it.

It may have been Mill's destiny to defend Bentham's theory. Mill was brought up to be a philosophical disciple of Jeremy Bentham, whom he regarded as his godfather. (In turn, Mill would later be godfather to one of the 20th century's most important philosophers, Bertrand Russell [1872–1970]—an odd chain of connection for three generations of antireligious philosophers.) Mill had an astonishingly rigorous education. He was taught Latin and Greek at a very early age, utterly devoting himself to his studies and to radical politics. He did not mix with other children, or do ordinary childhood activities such a riding a bike. Perhaps not surprisingly, he suffered something like a nervous breakdown in his twenties, after which he began to develop views that were distinct from Bentham's. Yet he continued to be greatly influenced by Bentham's thought. We will look at some of those differences later. But first, let's look at Mill's reasons for being so attracted to the utilitarian approach to ethics.

The Subjection of Women

Although Mill's text *Utilitarianism* is written to defend the theory, it gives surprisingly few examples of the advantages of utilitarianism compared to other systems of morality. In many of his other writings, however, Mill applied Bentham's ideas on the moral importance of individual happiness in order to propose liberating social reform.

For example, in his important and influential work on women's equality, *The Subjection of Women* (1869), Mill catalogues the pervasiveness of male domination, especially within conventional marriage, and examines its detrimental effects on human happiness. He likens the tyranny of marriage to slavery: the absolute and deeply unjust power of husband over wife. Mill comments that with the ending of legal slavery in the United States, "Marriage is the only actual bondage known to our law. There remain no legal slaves, except the mistress of every house" (1869/1996, p. 197). Mill was deeply influenced by his wife, Harriet Taylor, who had written on feminist topics. Indeed it is sometimes argued that Mill and Taylor effectively cowrote *The Subjection of Women*, even though it was published under Mill's name only. If so, this is a peculiar outcome for a book on this topic, although that would, perhaps, be a sign of the times in which it was written.

Mill offered many arguments for ending the tyranny and domination of men over women. He insisted that women had a right to equality. But he also appealed to utilitarian arguments, and here we can pick out four. These arguments all hold that utilitarianism demands the liberation of women because their subjection is detrimental to human happiness. First, Mill argues that it is bad for men to grow up falsely believing in their superiority over women, for this "arrogance and overbearingness" (1869/1996, p. 199) and expectation of service is likely to lead to their own misery over time. Second, by excluding women from employment in professions such as law and medicine, society is shunning half the potential talent pool. Therefore emancipation would have the effect of "doubling the mass of mental faculties available for the higher service of humanity" (p. 199). Third, the utter economic dependence of wives on their husbands gave husbands a duty to adopt safe, conventional lifestyles. In Mill's time married women could not own property, and from the moment of marriage a wife had to rely on her husband. According to Mill, having such responsibility for their wives and children led many men into quite conventional occupations. Mill claims that men became focused on accumulating resources to support their wife and provide an "advantageous match" (p. 207) for their daughters, rather than taking the risk of doing work that was more personally fulfilling or

advocating unpopular causes. Mill worries that a man known for unconventional opinions would be shunned by polite society; this would then damage his daughters' marriage prospects. Finally, and perhaps most obviously, women in subjection lose, so argued Mill, "the most inspiriting and elevating kind of personal enjoyment," as well as suffering "the weariness, disappointment, and profound dissatisfaction with life" which "dries up … the principal fountain of human happiness" (p. 215).

Interestingly, there is a mix of arguments here. Arguments one and three claim that men are worse off if women are subjugated, for they will become arrogant and make conservative choices. Argument two claims that society as a whole suffers if half its talent goes unused. And lastly, argument four—finally, an argument that concentrates on women's interests—suggests that women will be much happier if they have a full range of opportunities and greater freedom. And, of course, female happiness is part of the general happiness. The utilitarian theory therefore encourages, even demands, liberation from oppression. And this last point is the general theme of Mill's important book *On Liberty* (1869), which again argues that creating the conditions to encourage and enhance individual liberty advances collective happiness.

Seeing how Mill applies the theory of utilitarianism, it is easy to understand his irritation with critics who accuse utilitarianism of being a rather dull and petty theory. For Mill, utilitarianism inspired his life's work of arguing for the radical reform of Victorian institutions that had narrowed and constrained human lives into conventional and frustrating patterns. Utilitarianism, for Mill, unlocks human potential. It creates a world in which each person can achieve happiness in his or her own way, free from the crushing conformity that results from uncritical adherence to what has become traditional morality.

JUSTIFYING UTILITARIANISM

Let's now take up Mill's main task in the book *Utilitarianism*: to provide philosophical foundations for the theory, which Mill explains in terms very similar to those of Bentham:

> The creed which accepts as the foundation of morals, "utility", or the "greatest happiness principle" holds that actions are right in proportion as they tend to promote happiness; wrong as they tend to produce the reverse of happiness. By happiness is intended pleasure, and the absence of pain; by unhappiness, pain, and the privation of pleasure. … [P]leasure and freedom from pain, are the only things desirable as ends; … all desirable things … are desirable either for the pleasure inherent in themselves, or as means to the promotion of pleasure and the prevention of pain. (Mill, 1861/2001, p. 7)

But how, after all, is utilitarianism to be justified? Mill, like Bentham before him, recognizes the difficulty of this question. The same methodological problem seems to affect any theorist putting forward what they believe to be the most fundamental principle in any area. Normally, we show that a theory or principle is true by deriving it from a more fundamental principle. This is common practice in branches of mathematics or logic, where proofs are sometimes called derivations because they are derived from more fundamental axioms or principles. But as we go deeper and deeper, the problem becomes stark. From what can we derive the most fundamental axioms? In his memoirs, the philosopher and mathematician Bertrand Russell (mentioned above as Mill's godson) expresses his disappointment as a child on finding that in the Euclidian geometry his older brother tries to teach him, the most fundamental axioms had no proofs. They simply had to be taken on trust if any progress was to be made. But the young Russell wanted proof, not trust.

We can feel sympathy for the predicament of the utilitarian. If the principle of utility is the most fundamental axiom, how can it be proven? Yet at the same time, the attitude of not offering a proof leaves the defender of utilitarianism vulnerable. Suppose another theorist proposes another fundamental axiom that differs from utilitarianism. How are we supposed to decide between them if no form of proof is possible?

In fact we have already seen Jeremy Bentham's ingenious approach to this issue, using what we called an argument from elimination. Although he says explicitly that it is not possible to find a "direct" proof of utilitarianism, he does seem to offer an indirect attempt at proof. Recall that he argued against two other moral theories, the principle of asceticism and the principle of sympathy and antipathy. In effect he is presenting an argument for utilitarianism in two stages. In the first stage he invites us to accept that there are only three moral theories, or, at least, types of moral theories. In the second stage he argues that two of these are faulty and need to be rejected. From this it seems to follow that only one moral theory is acceptable: utilitarianism. The case is made.

How good is this argument? Well, it is not difficult to find some holes. First off, is it really true that there are only three types of moral theories? Bentham does not explain why there are only three types; and, as we noted, he has left out many other approaches to morality. But even putting that question aside, there is another weakness. Let's think about Bentham's arguments.

He rejected the principle of asceticism on the grounds that no one could really accept it. We also noted that weaker versions advocating some, though

not all, self-denial seem irrational because they obstruct human happiness for no apparent good reason. Let's accept Bentham's criticism against the principle of asceticism just to see where the argument leads us. Next, he rejected the principle of sympathy and antipathy on the grounds that its approach to morality was not rigorous. In effect, this principle lacks a formula for making moral decisions. Later on we will ask whether it is too much to expect a formula. But again, for the sake of the argument let's accept that this objection points to a genuine weakness. So where are we left? Only with the conclusion that we need a formula to help us make moral decisions, and it needs to be an approach that does not suppress pleasure for no good reason.

Certainly utilitarianism is a candidate theory that meets these criteria. But—and here is the critical question—is it the only theory that does this? Do other theories provide a formula and refuse to deny happiness for no good reason? Well, yes. One simple theory says that what matters is not maximizing happiness, but equalizing it. In other words, we should strive to make sure that everyone in the world is equally happy; and so we need to pay special attention to the people who are unhappiest, even if it results in less total happiness for society. If we believe that everyone should be equally happy, we have a formula to solve our moral problems. And with a bit of ingenuity, we could devise many other formulas. Bentham has not shown that utilitarianism is our only alternative, after all.

Mill's "Proof"

Can Mill do better? He also attempted a form of proof, and it has become one of the most discussed passages in moral philosophy. Here is what he says:

> The only proof capable of being given that an object is visible, is that people actually see it. The only proof that a sound is audible, is that people hear it: and so of the other sources of our experience. In like manner, I apprehend, the sole evidence it is possible to produce that anything is desirable, is that people do actually desire it. If the end which the utilitarian doctrine proposes to itself were not, in theory and in practice, acknowledged to be an end, nothing could ever convince any person that it was so. No reason can be given why the general happiness is desirable, except that each person, so far as he believes it to be attainable, desires his own happiness. This, however, being a fact, we have not only all the proof which the case admits of, but all which it is possible to require, that happiness is a good: that each person's happiness is a good to that person, and the general happiness, therefore, a good to the aggregate of all persons. Happiness has made out its title as one of the ends of conduct, and consequently one of the criteria of morality. (Mill, 1861/2001, pp. 35–36)

Perhaps it is a little puzzling that Mill does try to prove his position even though earlier he said that questions of "ultimate ends" were not capable of direct proof. Presumably this argument is considered to be some sort of indirect proof. But in any case, how is it to be understood?

The first thing to say is that the proof seems to fall into two halves. The first half is meant to show that happiness is desirable. The second, Mill said, attempts to show that "general happiness … [is] a good to the aggregate of all persons," a comment he seemingly intended to be another way of stating the utilitarian principle.

Let's now look more closely at the two arguments Mill makes in his "proof." The first argument begins by looking at some other questions of proof. How do we prove something is visible? How we do prove something is audible? As Mill suggests, the only way is from the fact that people see it, in the case of visibility, or hear it, in the case of audibility. Now, we could raise some questions; but for the sake of argument, let's accept Mill's claim that the only proof that something is visible is that people see it.

The argument then proceeds to the next stage. Just as the only proof that something is visible is that people see it, the only proof that something is desirable is that people desire it. This is what we saw is called an argument by **analogy** (see Chapter 1). Mill has just set out what we could call the logic of visibility. He is suggesting that the logic of the terms *visible* and *desirable* are similar enough that what we say about *visible* should, by analogy and with suitable adjustments, apply equally to *desirable*. If so, then he must next show that people actually desire happiness. But this step he takes to be so obvious that it barely needs further elaboration. And so it would follow that happiness is desirable, and the first stage of the argument is complete.

But does it all work out so neatly? Not according to the moral philosopher G. E. Moore (1873–1958):

> Well, the fallacy in this step is so obvious, that it is quite wonderful how Mill failed to see it. The fact is that "desirable" does not mean "able to be desired" as "visible" means "able to be seen." The desirable means simply what *ought* to be desired or *deserves* to be desired; just as the detestable means not what can be but what ought to be detested and the damnable what deserves to be damned. (Moore, 1903/1993, pp. 118–119)

This stinging criticism is that the terms *visible* and *desirable* simply are not analogous. *Visible* means "capable of being seen." If the analogy is to hold, then *desirable* should mean "capable of being desired." But it doesn't. Normally when we use the term *desirable*, we mean "ought to be desired." At best, when people desire something, it shows that the thing is *capable of*

being desired. But it does not show that it *ought to be* desired. For example, a recovering alcoholic might say, "I really desire a drink of whiskey, but having one is not at all desirable." This is enough to show that just because someone desires something, this does not prove that it is desirable. Therefore the analogy between visible and desirable does not hold and the argument falls apart, or so say the critics such as G. E. Moore.

Certainly it is possible that Mill could have made this mistake. And if he had explained himself more clearly, that would have helped. But often in the works of the great philosophers, more is going on than appears on the surface. It is generally worth taking a bit of time to search for another way of understanding their texts before concluding that they have committed an obvious fallacy. So let's consider the distinction between *desired* and *desirable* a little further.

Essentially, as Mill's critics have claimed, simply desiring something is not enough to show that it is desirable. The alcoholic desires a drink, but having one is not desirable. Now, Mill could ask, why is it undesirable for the alcoholic to have a drink? Well, one drink could lead to another, and another, and to disastrous consequences. It turns out that what the alcoholic desires is undesirable because it is likely to defeat more substantial or important desires: to stay sober and healthy. This example, then, shows only that desires can conflict. Something desired turns out to be undesirable only because it conflicts with a more substantial desire. By this reading, we can understand Mill's position in this way: Something that is desired is desirable, unless its satisfaction would conflict with a weightier desire. He would have to admit that for the alcoholic, merely desiring a drink does not show that the drink is desirable. But he would claim that the only way we have of assessing whether something is desirable is by looking at whether, on balance, it satisfies more, or greater, desires than it frustrates. In conclusion, then, Mill would argue that the distinction between *desired* and *desirable* is not as important as G. E. Moore and other critics allege.

On this account *desirable*, for Mill, would mean something like "desired when taking everything, including future consequences, into account." Does this save the argument? Well, there are some complexities here. The view that actions can be undesirable only if they are in some way harmful is at the center of the utilitarian doctrine. So possibly Mill could be accused of using the utilitarian theory itself in his argument for the utilitarian theory. This, we saw, is known in philosophy as **begging the question**: an odd phrase that really means you are assuming what you are setting out to prove. If an argument does beg the question, then it proves nothing. Another similar way of putting the criticism is to say that Mill has used a **circular argument**

(introduced in Chapter 1). An opponent of Mill could argue that an action can be desirable in ways other than by being desired. For example, an act that no one desires could still be judged as desirable for being in accordance with the will of God or the ancient traditions of our society. So it seems you do need to agree with Mill about quite a lot to find the analogy between *desirable* and *visible* plausible. Mill's "proof" is perhaps more of an *illustration of* the utilitarian view rather than an *argument for* it.

Aggregating Happiness

Perhaps I have been too hard on Mill. Perhaps he has shown that something is desirable if and only if people actually desire it (all things considered). Even so, that was only the first step in a two-stage argument. The first tries to show that happiness is desirable, and so if this stage of the argument does anything at all, it establishes what we referred to earlier in the chapter as the utilitarian *theory of the good*: that happiness and only happiness is good. It is another thing to show that the correct moral theory is the one that maximizes total or aggregate happiness, which also incorporates the utilitarian *theory of the right*. This is what the second step attempts.

Mill suggests that once it is established that each person's happiness is a good to that person, then it follows that the general happiness is to the good of the aggregate of all persons. But it is not completely clear what this means. Does it mean that the general happiness is to the good of each and every person? That could possibly follow if exactly the same things made us all equally happy. But that is not how the world works. When your team plays mine and yours wins, our happiness will go in opposite directions. Utilitarianism has to cope with the facts of life: that sometimes to make one group happy, others will have to suffer. Writing in 1788, almost 100 years before Mill published *Utilitarianism*, the great German philosopher Immanuel Kant (who we will discuss in detail in later chapters) pointed out that if each one of us pursues our own happiness, the result is much more likely to be the annihilation of society than harmony because our wills are likely to conflict. Remember from earlier chapters the Ik people, Hobbes's state of nature, and the prisoner's dilemma.

It may be tempting to say that the best defense of utilitarianism is that it just seems right. But to say this would be highly problematic. It would be approving of utilitarianism merely on the grounds that we like it. Yet this was exactly what Bentham found wrong with the principle of sympathy and antipathy. What do we say to someone who says that they don't like utilitarianism? This is why the proof of utilitarianism is so important, and why utilitarians are frustrated that it is so problematic.